

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER  
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND  
IDENTIFIERS ARE FICTIONAL**

# **United States Court of Appeals for the Fourth Circuit**

## **Piedmont Booksellers Guild v. City of Norvale**

No. SYN-CA4-26-CV-4103-CF-NEVER-OCCURRED

### **Rule 8 Motion with Specific Impracticability Showing**

Filed February 2, 2026

The City of Norvale moves under Federal Rule of Appellate Procedure 8(a)(2) for a stay of the January 23 preliminary injunction. Moving first in the district court is presently impracticable for specific, documented reasons. The assigned judge entered a recusal order on January 30 after learning that a family member held a financial interest in a contractor whose park work appears in the evidentiary submissions. The order directed the clerk to reassign the civil action before any further contested matter could be decided.

The attached declaration of Deputy City Attorney Mira Solis recounts contacts with the district clerk at 9:12 a.m. and 3:46 p.m. on January 30 and again at 10:05 a.m. on February 2. The clerk advised both parties that random reassignment had begun, that no successor judge had received the file, and that the court could not place a stay application before a judicial officer before February 5. Guild counsel participated in the final call and does not dispute what the clerk said.

Norvale must confirm transit coordination and supplemental staffing by noon on February 3 to obtain personnel for the February 14 fair. After that deadline, the relevant employees are assigned elsewhere under existing schedules. The City therefore cannot obtain a district ruling before the identified administrative decision becomes fixed. This limited reassignment interval, corroborated by dated communications and an imminent irreversible commitment, satisfies Rule 8's impracticability route.

## **Sworn Facts Supporting Initial Appellate Presentation**

Solis declares under penalty of perjury that she prepared a proposed district stay motion on January 29 after the notice of appeal was filed. Before filing it, the January 30 recusal order appeared on the electronic docket. She immediately called the clerk's civil intake office and asked whether the motion could be referred to the duty judge. The deputy clerk explained that local assignment procedures did not permit another judge to act in the case until reassignment and docket transfer were completed.

At the afternoon call, Solis requested an emergency reassignment or permission to lodge the motion for immediate consideration. The clerk accepted a notice of intended filing but stated that the court could not promise judicial review before February 5. On February 2, Solis and Guild counsel jointly called for an update. The clerk reported that conflict screening remained under way, no successor judge had been selected, and no judicial officer was available to hear the proposed motion sooner.

Parks Operations Manager Leon Price separately declares that the transit liaison and two supplemental employees are available for the February date only if Norvale confirms by noon February 3. The staffing agreement does not permit a later recall after the workers accept other assignments. Price explains that the unresolved injunction affects which intake process staff will use and which personnel must review changes. His declaration concerns scheduling, not an assertion of expected disorder.

The City supplies the recusal order, clerk notice, contemporaneous call memoranda exchanged with Guild counsel, the staffing confirmation, and both declarations. It asks this Court to act because the temporary absence of an assigned district judge extends beyond the specific decision point, not merely because appellate review seems faster.

## Requested Stay and Procedural Scope

The City seeks a stay through disposition of this interlocutory appeal, subject to safeguards described below. Alternatively, it requests a short administrative stay until the completed district record is transmitted and the parties can provide a focused supplement. The requested order would temporarily permit use of the ordinance's neutral application and planning provisions; it would not decide the constitutional claims or bind the district court on permanent relief.

The Court has jurisdiction over the January 23 grant of preliminary injunctive relief under 28 U.S.C. § 1292(a)(1). The complaint, damages questions, and any request for permanent relief remain before the district court. The present motion asks only which regime will govern the six announced fairs during review. No automatic stay arose from the notice of appeal.

Federal Rule of Appellate Procedure 8 allows initial appellate presentation when moving first below would be impracticable. The City recognizes that this is a demanding exception. It relies on a recusal already entered, an incomplete reassignment confirmed by the clerk, unsuccessful efforts to obtain referral, and a February 3 staffing commitment that will pass before the earliest represented date for judicial consideration. Each assertion outside the existing merits record is supported by a declaration.

Once the reassignment obstacle ends, the City will notify this Court and the Guild promptly. It will also file any motion or supplemental material the successor judge directs. The temporary procedural showing should not be confused with the *Nken* merits. Satisfying Rule 8 permits consideration; it does not itself establish an entitlement to a stay.

## **Likelihood of Success**

The City is likely to show that the district court applied narrow tailoring too strictly to a content-neutral public-space rule. Ordinance N-2025-18 covers recurring events with scheduled compensated speakers. It requests names, general topics, times, site details, equipment, traffic arrangements, and expected attendance, and it requires written decisions tied to documented operational risks. Compensation is an objective marker of an organized presentation, not a judgment that paid speech is dangerous or less protected.

Cedar Commons adjoins transit stops, a loading lane, a crossing, and a service entrance. The record describes short unloading delays, temporary narrowing of a route by seller materials, movement toward signing tables after readings, and two minor medical calls. Those events were handled peacefully, but they demonstrate why advance schedules and reliable contact information assist planning. A city need not wait for violence or a blocked emergency response before coordinating foreseeable concentrations.

The district court preferred direct measures such as attendance, format, equipment, loading, and material-change updates. The ordinance already collects those facts. The paid-presentation trigger identifies when the enhanced submission is required without asking officials to decide which informal conversations qualify as speeches. Narrow tailoring does not compel the least restrictive imaginable rule or perfect correspondence between every covered event and every asserted concern.

The enactment forbids viewpoint consideration, permits a general description, limits conditions and denials to operational grounds, and requires written reasons. The pilot history contains approvals with physical conditions and no ideological inquiry. Those safeguards and the evidentiary record give the City a substantial prospect of showing that preliminary displacement of the entire process was an abuse of discretion.

## **Amendments and Administrative Charges**

The Guild's principal practical concern is that authors often confirm after the forty-five-day filing point. Norvale accepts that late changes are part of literary programming. It will decide a substitution request within three business days, accept a concise description, and approve a replacement when time, place, format, equipment, and reasonably expected attendance are materially unchanged. Any different condition will identify the operational fact supporting it.

This commitment narrows the uncertainty without converting amendment review into viewpoint approval. A substitute presenter may sometimes change audience size, amplification, seating, duration, or transition needs. The City may assess those consequences. It will not reject a change because the new author's subject or perspective differs. Permit communications will be preserved for review.

The fee schedule assigns \$240 to event intake and interdepartmental coordination and \$45 to each scheduled paid presentation. The record does not show that the City uses the charges for general revenue or varies them according to message. A fixed amount may average files of different complexity without becoming a tax on disfavored ideas. Norvale recognizes, however, that six authors produce a meaningful \$510 assessment for this nonprofit.

If the Court is not prepared to restore the entire ordinance, it should leave the speaker increment suspended while permitting use of the schedule, identity, general-topic, format, equipment, site, and update requirements. The City will not seek retroactive fees for programming conducted under the injunction. This narrower alternative responds to economic harm while maintaining a coherent planning process.

## **Specificity, Security, and Probable Appellate Relief**

The January 23 operative language enjoins “enforcement” of the Paid-Speaker Permit Ordinance but permits neutral rules concerning reservations, capacity, traffic, emergency access, sanitation, physical layout, competing uses, and materially changed conditions. Because the enactment combines logistical and speaker-related provisions, employees cannot determine from the command which questions, deadlines, written decisions, or conditions remain lawful. Rule 65(d) requires more exact notice to persons exposed to contempt.

The accompanying memorandum discusses intended limits but cannot replace a reasonably detailed operative command. A question about expected attendance plainly concerns preserved safety authority; a question about an author's name may be necessary to process a permitted same-slot change; a written condition may arise from both the ordinance and a general park rule. The present wording leaves each boundary uncertain. Corrective appellate relief is therefore likely even if some underlying entitlement survives.

The order also sets no security and contains no express determination under Rule 65(c). The Guild may persuasively seek a nominal amount because the suit concerns protected expression and the City has not quantified substantial compensable loss. The court still must exercise its discretion on the record. Administrative expense, foregone charges, and reliance during recurring dates cannot be addressed through silence.

Together, these defects strengthen the City's likelihood of obtaining material relief from the order as entered. A stay would prevent continued administration under an indefinite command while a precise order is considered. At minimum, a brief suspension would allow the record to be completed and the parties to propose terms that give both officials and organizers fair notice.

## Irreparable Harm

Norvale's harm is the loss of a planning opportunity, not simply a claim for unpaid fees. Transit coordination and supplemental personnel must be confirmed before the February event. Site comparisons, loading instructions, and emergency-route decisions also precede public opening. Once those choices are made under an uncertain division of authority, later correction cannot recreate the elapsed period or ensure that similarly situated organizers were treated consistently.

The injunction places employees in a difficult position. They may omit a legitimate operational inquiry because it appears in Form PS-1, or ask it under a general rule and invite a contempt dispute. The recusal and reassignment interval heightens that uncertainty by preventing prompt clarification from the issuing court. A specific temporary appellate order would identify what the City may do while preserving review of any concrete condition.

The City does not portray the Guild as disorderly. Its fairs have no history of violence, arrest, or property damage. The evidence instead shows ordinary challenges of a shared downtown site: a narrowing path, brief curb delay, listener movement, and minor medical access. Preventive coordination is valuable precisely because such conditions have been managed without serious injury.

The February 3 staffing deadline gives the harm a definite time. Price's declaration identifies the employees, confirmation process, and consequence of noncommitment. It does not assume that extra staff will be necessary at every fair. It establishes that the option will disappear before a successor district judge can evaluate the request. That unrecoverable loss supports interim action.

## **Harm to the Guild and the Public Interest**

The Guild's injuries are also time sensitive. Author invitations, honoraria, travel, publicity, and bookseller commitments may be chilled by an uncertain approval process or cumulative charges. A reading lost in February cannot simply be reproduced months later. The Court should therefore condition any stay to prevent the City's planning interests from becoming a means of controlling literary content.

Norvale proposes enforceable limits. A general topic description is enough. Viewpoint and anticipated audience hostility are forbidden considerations. A speaker-only substitution with unchanged operational features will be approved promptly. A condition must identify the site, schedule, equipment, crowd, traffic, sanitation, competing-use, or resource fact that supports it. The Guild retains immediate access to judicial relief from a disputed decision.

The public interest includes both free literary programming and safe, predictable access to Cedar Commons. Readers benefit from open author events; transit users, pedestrians, vendors, nearby businesses, and persons needing service access benefit from coordination. A carefully bounded stay can serve both interests during expedited review. The continuing authority to regulate neutral hazards confirms that this is a dispute about process and fit, not whether public safety matters.

A partial stay is available if full restoration would burden the Guild too heavily. Preserving the injunction against the per-speaker assessment while allowing defined operational submissions would protect the nonprofit's budget and reduce uncertainty for employees. The Court can set a short duration, direct preservation of communications, and require notice when district reassignment is complete.



## Conclusion and Certifications

The City has made the specific Rule 8 showing necessary for initial consideration here. The assigned judge recused on January 30, no successor judge had the file by February 2, the clerk advised both parties that no judicial action could occur before February 5, the City attempted referral and emergency reassignment, and a documented February 3 staffing commitment will become unavailable first. Declarations and contemporaneous records support each material fact.

On the stay factors, the City has shown a substantial likelihood of appellate relief, an unrecoverable loss of coherent planning opportunities, conditions that reduce injury to the Guild, and a public interest in both expression and safe access. It asks for a stay pending appeal or, alternatively, a short and precisely defined partial suspension followed by supplemental consideration when the district record and reassignment status are available.

The motion includes the January 23 opinion and order, notice of appeal, ordinance, material declarations and exhibits, recusal order, clerk notice, communication memoranda, staffing confirmation, and the declarations of Solis and Price. Counsel conferred on February 2. The Guild opposes a stay but does not dispute the statements made during the joint clerk call. Electronic service was completed the same day.

The City will notify the Court within four hours after learning that a successor district judge has been assigned. It will preserve every permit communication and comply with the injunction unless relief is granted. Respectfully submitted February 2, 2026, by Municipal Appellate Counsel for the City of Norvale.